

Scarning Primary and Pre School Audit Report

Audit Date: 13 February 2020

Report: Year 2 visit 2

DPE: Linda Mortimer

**School member: Caroline Denton – School Secretary
Jenni Matsell – Pre School Manager**

Visit details

Details highlighted at the time of the last visit were discussed. GDPR documents and policies were also reviewed. This included DPE Best Practice areas, Compliance Checklists, SLA tool, Record of Processing and Compliance Manager being discussed and demonstrated to the school. The themed audit carried out by NCC in Summer Term 2019 was also talked through (refer to section 5 below) as well as when the need arises for completing a Data Protection Impact Assessment (DPIA), (refer to section 4.1 below).

Review actions recommended at time of previous visit – 14.10.19

All recommendations made at the time of the previous visit have been actioned, with the exception of:

Care Plans: Are now stored in an opaque folder in the back office.

Signing in: School has risk assessed the amount of PII data on display at sign-in and now archive completed signing in sheets.

Area highlighted	School	Pre-School
Training	All staff have completed GDPR 101 training and is now part of induction programme for new staff.	Some staff have completed training 3 new staff are about to be set up for training.
ICO Registration	School is registered.	Pre-school has now registered.
Data Breach Procedure	Shared with all staff.	Shared with all staff.
Publication Scheme	School will check if they have this in place.	Pre-school will check if they have this in place.
GDPR Policy	Updated and published on website.	Wording to be checked.
Privacy Notice	Has been updated and includes list of 3 rd parties. Located in GDPR section on school website	Wording to be checked.
Adopted Policies	Records Management / Information Classification / FOI / Working away from School - presented to Govn Body in February. Following ratification these will be published on the school website.	Pre-school are awaiting confirmation of wording for these policies. Will present to Governing Committee in a draft format and publish on website.
Clear Desk and Screen Policy	Shared with school staff.	Shared with pre-school staff.
Retention Schedule	School uses IRMS Toolkit.	Pre-school uses Early Year Alliance retention schedule.
School Server	School server is in a secure location.	Server to be relocated to a more secure location – check with IT Technician

		Pre-School to check level of encryption for Server as a matter of urgency – liaise with IT Technician.
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Audit walk and findings on 11.2.20

Focus Area	School	Pre-School
Privacy Notice	Ensure visitors are signposted to location of Privacy Notice ie school website.	Ensure visitors are signposted to location of Privacy Notice ie Pre-School website.
Publication Scheme	FOI Publication Scheme was discussed at time of the visit – more information is available under the News tab on Knowledge Bank.	FOI Publication Scheme was discussed at time of the visit – more information is available under the News tab on Knowledge Bank.
Best Practice Checklists	Reviewed at time of Audit. School will complete.	Reviewed at time of audit and some checklists were completed. Pre-School will complete.
Staff Training	All staff have completed GDPR 101 training. A member of staff (HH) works across both sites and has completed GDPR 101 training but this is not reflected on KB. Bite size training now on Knowledge Bank. GDPR refresher will be available shortly. Suggest GDPR training should be refreshed 2 yearly.	Some staff have training outstanding Ensure new staff have training. Bite size training now on Knowledge Bank. GDPR refresher will be available shortly. Suggest GDPR training should be refreshed 2 yearly.
Consent Forms	School to check their current consent forms with DPE model. School to ensure that parents can easily withdraw consent.	Pre-School to check their current consent forms with DPE model. Pre-School to ensure that parents can easily withdraw consent.
Use of iPads / School Cameras	Ensure student images are regularly uploaded to secure area of the server and then cleansed from the device on which they were taken. EYFS Learning Journey – Tapestry is used as a platform. Images are uploaded on a daily basis. Staff must be made of aware of Photo and Video Guidelines – see KB	Ensure student images are regularly uploaded to secure area of the server and then cleansed from the device on which they were taken. Tapestry is used in the Cloud by staff, at home. Images are uploaded on a daily basis and then deleted. Staff must be made of aware of Photo and Video Guidelines – see KB

Security of iPads / Laptops	Devices are encrypted, password protected and accounted for on a regular basis. Check that 'find my iPad' is installed and also 'return to factory settings' are installed on all iPads. Ensure staff have read and understood Working away from School Policy – can be shared via KB	Devices are encrypted, password protected and accounted for on a regular basis. Check that 'find my iPad' is installed and also 'return to factory settings' are installed on all iPads. Ensure staff have read and understood Working away from School Policy – can be shared via KB
Security Settings	Managed by NCC ICT Solutions IT Technician.	Check with IT Technician the level of password protection for Outlook Email.
Cloud Computing	School uses Google Docs and web-based programmes.	Pre-School uses Tapestry as online platform.
Print Access	School has tried to achieve secure print access and now have the option installed.	N/A
Back-up Protocols and Cleansing of Server	Managed by IT Technician. Ensure there are robust procedures in place to cleanse out of date images.	Check levels of encryption with IT Technician as server is located in extremely vulnerable location Ensure there are robust procedures in place to cleanse out of date images.
Naming Convention	All exercise books, work trays, displays and coat pegs have first name only. Class lists to include first name only. Reception Class – remove actual date of birth from Birthday Wall.	Use of first name only. Sleep Forms – remove surname. Birthday Wall – remove actual date of birth.
Staffroom Pigeonholes	Found information relating to 2 SEND students – remind staff of risks associated with retaining confidential information in such a way. Found information relating to staff salaries – remind staff to remove confidential information.	N/A

1. Compliance actions that should now be completed

Initial documents:

- Privacy Notice
- GDPR Policy
- Data Breach Procedure
- SAR procedure
- Photo and Video consent, guidelines and records

Ideally you would also have: Work away from school, clear desk and screen, information classification and record management policy/paperwork. Schools have either adopted the DPE models or incorporated some of this within their staff handbook, for example, work away from school.

The following should also be completed:

- There should be no named person on any of the above documents. If there is a named person i.e. Stuart Lee, the name needs replacing with: Data Protection Education Ltd;
- The Privacy Notice should have an appendix with your third-party suppliers listed. You should also make sure suppliers are GDPR compliant;
- The Privacy Notice, GDPR Policy and consent withdrawal form should be displayed on the school website;
- All staff should know what the data procedure is, and the document should be circulated to all staff;
- Key staff responding to SARs should have access to the SAR procedure and understand their responsibilities.

1.1. Data retention schedule:

By now you should be working through both physical and electronic data and have a good understanding of what data you hold and be documenting this. There are a number of documents available to support the process:

- Governor hub: annual review of school data and safe data destruction checklist
- IRMS toolkit: https://c.ymcdn.com/sites/irms.site-ym.com/resource/collection/8BCEF755-0353-4F66-9877-CCDA4BFEEAC4/2016_IRMS_Toolkit_for_Schools_v5_Master.pdf
- DfE toolkit
https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/747620/Data_Protection_Toolkit_for_Schools_OpenBeta.pdf (Annex 5,1)

1.2. Staff training

GDPR training has been completed and documented for the majority of staff. If not already you should:

- Rollout training to key staff and then consider all staff completing the e-learning training;
- Add as part of the induction process for new staff;
- Use staff meetings/briefings to raise staff awareness.

1.3. Governance check

It should form part of governance that GDPR is an item at governor meetings and to share reports with governors. Ideally the governor responsible for GDPR will have completed some form of GDPR training.

1.4. Make sure DPE is your registered DPO with the ICO

Not only do you need to be registered as a controller with the ICO, it is a requirement to register who your DPO is. The guide to complete this is available from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news/83-best-practice-updates/110-make-sure-dpe-is-your-registered-dpo-with-the-ico>

2. Freedom of Information and Publication Scheme

The DPE GDPR policy and FOI policy content refer to the organisation having a publication scheme - do you have one? **The template for a model publication scheme can be obtained from:** <https://ico.org.uk/media/for-organisations/documents/1235/definition-document-schools-in-england.pdf> How to complete a publication scheme guide can be obtained from: <https://ico.org.uk/media/for-organisations/documents/1242/how-to-complete-template-guide-to-info-for-schools.pdf> Additional guidance can be obtained from the news section of the DPE website: <https://kb.dataprotection.education/news-top/news>

3. Technical measures

DPE recommends schools complete the Cyber essentials questionnaire available from: DPE>Resources> Information Technology Security: <https://kb.dataprotection.education/best-practice-library/documents/information-technology-security/7-crest-cyber-essentials-questionnaire>;

Check iPad/Tablet security. Are all laptops encrypted, does your end of day routines include housekeeping to remove data no longer needed and is equipment secured? Do staff still use unencrypted memory sticks? DPE recommends schools develop procedures to ensure iPads can be accounted for daily and data (i.e photos) can be cleared if lost or stolen ([Erase your device](#))

4. Next steps

Record of Processing (RoP) tool and data mapping

DPE have started to populate the Record of Processing (RoP) tool. Rather than each school complete individually, DPE will be populating as many processes as possible and then work with you to complete for your school. It is a requirement under article 30 of the GDPR and will form part of the basis for future remote sessions and visits.

4.1. Data Protection Impact Assessments (DPIA)

When processing high risk personal data and using new technologies (i.e. moving to a new technology for Safeguarding) a DPIA should be completed and the DPO consulted (Article 35.2). DPIAs offer a risk assessment template where concerns can be noted alongside mitigating actions to reduce the overall risks related to change of practice. It is good practice to complete a DPIA for any major project where the processing of personal data is required. DPE will be providing more guidance, training and include risk management within the RoP tool. Always contact DPE in the first instance.

5. Norfolk County Council Summer GDPR audits

NCC auditors completed several themed GDPR audits during the summer term 2019. DPE have provided feedback to the findings which can be obtained from the News section of the DPE website: <https://kb.dataprotection.education/news-top/news>